

24STCV23198 24STCV23198

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Case Number: 24STCV23198 Hearing Date: July 17, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Defendants' Motion
for Summary Judgment or, Alternatively, Summary Adjudication.

BACKGROUND

Plaintiff Ernest N. Ramirez (Plaintiff) filed this action
against Defendants Ford Motor Company (Ford) and BP Ford of Long Beach (the
Dealership) (collectively, "Defendants"), alleging that the new 2022 Ford
Maverick Plaintiff purchased (the Vehicle) developed defects that Ford failed
to repair after a reasonable number of attempts and that the Dealership
negligently repaired the Vehicle.

The Complaint alleges five causes of action: (1) Violation
of Civil Code Section 1793.2, Subdivision (D); (2) Violation of Civil Code
Section 1793.2, Subdivision (B); (3) Violation of Civil Code Section 1793.2,
Subdivision (A)(3); (4) Breach of the Implied Warranty of Merchantability, each
asserted against Ford Under the Song-Beverly Consumer Warranty Act; and (5)
Negligent Repair, asserted against the Dealership.

Defendants filed a Motion for Summary Judgment or,
Alternatively, Summary Adjudication. Plaintiff filed an Opposition.

LEGAL STANDARD

A defendant moving for summary judgment must show that one
or more elements of a cause of action cannot be established or that there is a
complete defense to it. (Code Civ. Proc., § 437c, subd. (p)(2).) The motion
must be granted if the papers show that there is no triable issue as to any

material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

A defendant meets its initial burden by presenting evidence, and not by simply arguing that the plaintiff lacks evidence. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854 (*Aguilar*).) A moving defendant may also rely on a plaintiff's factually devoid discovery responses to shift the burden. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.) If the defendant carries that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court strictly construes the moving party's evidence and liberally construes the opposing party's evidence, resolving any doubts in favor of the opposing party. (*Aguilar*, *supra*, 25 Cal.4th at p. 843.)

A motion for summary adjudication proceeds under the same standard and may be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

ANALYSIS

I. Defendants' Objection to the Untimely Opposition

An opposition to a motion for summary judgment must be served and filed not less than 20 days before the hearing unless the Court for good cause orders otherwise. (Code Civ. Proc., § 437c, subd. (b)(2).) Plaintiff served and filed the Opposition after that deadline. Defendants object on that ground and, in the alternative, request a continuance to file a reply.

The Court has broad discretion to refuse to consider papers filed after the deadline without a prior order finding good cause. (Cal. Rules of Court, rule 3.1300(d); *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) The Court exercises its discretion to consider the opposition. The policy favoring disposition on the merits supports consideration, and the evidence submitted with the Opposition consists of excerpts of Plaintiff's deposition, which Defendants' counsel took. The request for a continuance is denied.

Accordingly, the objection is overruled, and the Court

considers the Opposition.

II. Violation of Civil Code Section 1793.2, Subdivision

(d)

To prevail on a claim under section 1793.2, subdivision (d), a plaintiff must prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired its use, value, or safety; (2) the vehicle was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the nonconformity after a reasonable number of repair attempts. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 152.) The replacement or restitution remedy is triggered only after a reasonable number of attempts, and a single repair opportunity does not suffice. (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208.) The reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances, subject to the minimum that there be more than one opportunity to repair the nonconformity. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799.)

Ford's evidence shows that Plaintiff presented the Vehicle three times before filing suit, that the steering vibration for which Plaintiff presented the Vehicle was resolved, and that Plaintiff's discovery responses direct Ford to a document production containing no evidence of an unrepaired nonconformity. (Scott Decl., ¶¶ 4, 5, 8, 9, Ex. 3, Ex. 4, Ex. 7 at 24:21-24, 30:18-21, 32:4-33:9, 33:10-36:18, 38:16-19, 40:24-41:5, Ex. 8.) That showing shifts the burden to Plaintiff.

Plaintiff's deposition testimony raises a triable issue.

Plaintiff testified that the Vehicle exhibits transmission hesitation, described as a delay or failure in gear shifting on acceleration, and recurring brake problems, and that both conditions remained unresolved as of the deposition despite presentation of the Vehicle for repair on multiple occasions. (Fuchs Decl. ¶¶ 9-13, Ex. 1 at 24:25-25:10, 25:11-17, 33:4-9, 39:1-19.) Viewing this evidence and the reasonable inferences from it in the light most favorable to Plaintiff, a trier of fact could find that the Vehicle had a nonconformity covered by the express warranty that Ford failed to repair after a reasonable number of attempts. Whether the number of attempts was reasonable is itself a question of fact. (*Robertson, supra*, 144 Cal.App.4th at p. 799.)

Accordingly, summary adjudication of the first cause of action is denied.

III. Violation of Civil Code Section 1793.2, Subdivision (b)

Section 1793.2, subdivision (b), requires that, where warranty service or repair is necessary, repairs be commenced within a reasonable time and, unless the buyer agrees otherwise in writing, that the vehicle be serviced or repaired to conform to the applicable warranties within 30 days, subject to extension for delay beyond the manufacturer's control. (Civ. Code, § 1793.2, subd. (b).) The obligation is to conform the vehicle to the warranty within 30 days; the duration of any single repair visit does not establish compliance.

Ford contends that no repair visit exceeded 30 days. (Mot. at p. 13:9-14; Scott Decl., ¶ 4, Ex. 3.) That showing does not negate the element. Plaintiff testified that he reported a malfunctioning rearview camera, was told the necessary part was unavailable, and waited approximately three to four months for the repair, and that the transmission and brake defects were never conformed to warranty. (Fuchs Decl. ¶ 9, Ex. 1 at 33:4-9, 39:1-19; ¶¶ 12-13, Ex. 1 at 24:25-25:10, 25:11-17.) That evidence raises a triable issue as to whether Ford serviced or repaired the Vehicle to conform to the applicable warranties within 30 days.

Ford separately asks the Court to adjudicate that the replacement or restitution remedy is unavailable under this cause of action. (Mot. at p. 13:25-p. 14:10.) A request to limit the remedy available on a cause of action does not completely dispose of a cause of action, an affirmative defense, a claim for damages, or an issue of duty, and is not a proper subject of summary adjudication. (Code Civ. Proc., § 437c, subd. (f)(1).)

Accordingly, summary adjudication of the second cause of action is denied.

IV. Violation of Civil Code Section 1793.2, Subdivision (a)(3)

Section 1793.2, subdivision (a)(3), requires the

manufacturer to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (Civ. Code, § 1793.2, subd. (a)(3).)

Ford relies on Plaintiff's factually devoid discovery responses to shift the burden. (Mot. at p. 14:11-p. 15:2; Scott Decl., ¶¶ 4, 5, Exs. 3, 4.) Plaintiff testified, however, that after he reported the rearview camera malfunction, Ford's authorized facility was unable to obtain the necessary replacement part for approximately three to four months. (Fuchs Decl. ¶ 9, Ex. 1 at 33:4-9, 39:1-19.) Drawing all inferences in Plaintiff's favor, a trier of fact could find that Ford failed to make sufficient replacement parts available to its authorized facility during the warranty period.

Accordingly, summary adjudication of the third cause of action is denied.

V. Breach of the Implied Warranty of Merchantability

The implied warranty of merchantability accompanies every retail sale of consumer goods and requires, among other things, that the goods be fit for the ordinary purpose for which they are used; in the case of a vehicle, the warranty is breached only if the vehicle manifests a defect so basic that it is unfit for its ordinary purpose of providing transportation, and the warranty provides for a minimum level of quality. (Civ. Code, §§ 1791.1, 1792; *American Suzuki Motor Corp. v. Superior Court* (1995) 37 Cal.App.4th 1291, 1296.) The duration of the implied warranty is coextensive with the express warranty but in no event more than one year following the sale. (Civ. Code, § 1791.1, subd. (c).) That durational provision limits the period during which the warranty is in force; it does not require that a latent defect be discovered, or that the vehicle be presented for repair, within that period. A latent defect existing at the time of sale renders the vehicle unmerchantable by the existence of the defect, not by its later discovery. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304-1305.)

Ford contends that Plaintiff cannot establish a breach because the Vehicle was not presented for warranty repair within the one-year implied warranty period. (Mot. at p. 15:24-28.) That contention misapprehends the governing standard. Because a latent defect existing at the time of sale may breach the implied warranty even though it manifests later, Ford's showing

that the Vehicle was not presented within the first year neither negates the existence of a latent defect nor establishes that Plaintiff cannot prove a breach. Ford has not carried its initial burden as to this cause of action. Plaintiff's testimony that the transmission and brake defects recur and remain unresolved further supports a reasonable inference that the defects were latent in the Vehicle at the time of sale, and whether the Vehicle was merchantable is a question of fact. (Fuchs Decl. ¶¶ 12-13, Ex. 1 at 24:25-25:10, 25:11-17.)

Accordingly, summary adjudication of the fourth cause of action is denied.

VI. Negligent Repair

The economic loss rule bars recovery in tort for purely economic losses, meaning financial harm unaccompanied by personal injury or damage to property other than the product itself. (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) As between contracting parties, the rule bars a tort claim arising from the contractual relationship unless the defendant violated a duty independent of the contract or engaged in intentional conduct such as fraud. (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988-990.)

The Dealership's evidence establishes, without dispute, that Plaintiff alleges no personal injury and no damage to property other than the Vehicle itself and seeks only economic losses. (Scott Decl., ¶¶ 2, 7, Ex. 1, Ex. 6, Nos. 6.1, 7.1, 8.1, 9.1.) The negligent repair cause of action arises from the same warranty repair relationship that underlies Plaintiff's statutory claims and identifies no duty independent of that relationship and no intentional conduct. (Mot. at p. 17:6-16; Scott Decl., ¶ 2, Ex. 1, ¶¶ 11, 45, 46, 48.) Plaintiff did not address this cause of action in the Opposition and has not raised a triable issue. The economic loss rule bars the negligent repair claim.

Accordingly, summary judgment is granted as to the dealership. Because summary adjudication is denied as to the first through fourth causes of action, summary judgment is denied as to Ford.

CONCLUSION

Defendants' Motion for Summary Judgment is granted as to the

Dealership and denied as to Ford. Defendants' alternative Motion for Summary
Adjudication is moot as to the fifth cause of action and is otherwise denied.